# Megan Colyer Corp — Joint Venture Disposition Agreement

Confidentiality • Non-Circumvention • Disposition

**Megan Colyer Corp**

**JOINT VENTURE DISPOSITION AGREEMENT**

**CONFIDENTIALITY • NON-CIRCUMVENTION • DISPOSITION**

This Joint Venture Disposition Agreement ("Agreement") is entered into between Megan Colyer Corp, a Missouri corporation ("MCC"), Megan Colyer, individually ("Megan"), and the undersigned joint venture partner ("JV Partner"). MCC and Megan are collectively referred to as the "Disposition Parties." The Disposition Parties and JV Partner may each be referred to as a "Party" and collectively as the "Parties."

The Parties desire to collaborate on the disposition or assignment of real estate purchase contracts brought to the Disposition Parties by JV Partner. This Agreement establishes the Parties' general working relationship. Each individual property may also be subject to a separate transaction-specific agreement, assignment agreement, fee agreement, or other written document.

**1. PURPOSE AND JOINT VENTURE RELATIONSHIP**

The purpose of this Agreement is to establish a joint venture relationship in which JV Partner identifies and contracts to purchase real property, and the Disposition Parties assist with marketing, buyer matching, investor outreach, offer collection, transaction coordination, and related disposition activities for the purpose of assigning the contract or otherwise facilitating a disposition transaction.

The Parties intend this to be a contractual joint venture for specific disposition opportunities and not a general partnership, employment relationship, agency relationship, brokerage relationship, or fiduciary relationship. No Party has authority to bind another Party except as expressly authorized in writing.

This Agreement does not transfer JV Partner's purchase contract to the Disposition Parties and does not itself create an assignment of any real estate contract.

**2. JV PARTNER'S RESPONSIBILITIES**

JV Partner's role is to bring to the Disposition Parties a property subject to a valid, enforceable, and properly executed purchase contract or other assignable contractual interest that JV Partner has the legal right to market, assign, novate, or otherwise dispose of.

JV Partner is responsible for obtaining and maintaining the underlying purchase contract and for ensuring that the contract is assignable or otherwise permits the proposed disposition strategy. JV Partner is responsible for all representations made to the seller, the accuracy of the information provided to the Disposition Parties, and compliance with applicable law.

JV Partner shall promptly provide the Disposition Parties with the purchase contract, addenda, disclosures, property information, seller contact information as appropriate, assignment rights, closing information, known liens or title issues, inspection information, photographs, access information, underwriting information, and any other material information reasonably necessary to market and evaluate the opportunity.

JV Partner shall not knowingly provide false, misleading, materially incomplete, or outdated information to the Disposition Parties or prospective buyers.

**3. MISSOURI WHOLESALER DISCLOSURE AND SB 973 COMPLIANCE**

JV Partner represents and warrants, for every applicable transaction, that the underlying transaction is being handled in compliance with all applicable federal, state, and local laws, including Missouri's wholesaler disclosure requirements applicable to residential real property.

If JV Partner is acting as a wholesaler or wholesaler's representative in a transaction covered by Missouri Revised Statutes §407.3600, JV Partner represents that the required statutory disclosure has been properly provided to the record owner in the manner and within the time required by law, and that the required signatures and dates have been obtained before entering into a binding contract when required by the statute. JV Partner shall provide evidence of such disclosure and signatures to the Disposition Parties upon request.

Alternatively, if JV Partner is purchasing the property as the actual end buyer for its own account and the transaction is not being conducted as a wholesale assignment or novation, JV Partner shall accurately disclose that status to the Disposition Parties. A double closing does not, by itself, eliminate any legal disclosure requirement that otherwise applies.

The Parties acknowledge that this Agreement does not waive, modify, or replace any statutory disclosure requirement. If applicable law requires a disclosure, signature, notice, waiting period, or other condition, that requirement controls.

If the Disposition Parties reasonably determine that required documentation, disclosure, signatures, contractual rights, or other compliance information has not been provided, the Disposition Parties may decline to market the opportunity or may immediately discontinue disposition activities without liability.

**4. DISPOSITION PARTIES' ROLE AND SERVICES**

The Disposition Parties may provide the following disposition services:

Buyer matching;

Deal marketing;

Investor outreach;

Showing coordination;

Offer collection;

Contract coordination;

Buyer communication;

Investor follow-up; and

Market positioning strategies.

The Parties acknowledge that these services are performed as part of the Parties' joint venture disposition arrangement and do not create a seller agency, buyer agency, transaction brokerage, or other representation relationship unless a separate written agreement expressly creates such a relationship.

**5. PROPERTY ACCESS & SHOWING AUTHORIZATION**

JV Partner shall provide the Disposition Parties with complete and accurate property access information, including any access instructions, showing restrictions, required notice, lockbox information, occupancy information, seller instructions, and any other rules applicable to entry onto the property.

By providing property access information to the Disposition Parties, JV Partner represents and warrants that the seller under the underlying purchase contract has authorized property walk-throughs by the Disposition Parties' team, prospective buyers, investors, inspectors, contractors, or other persons reasonably involved in evaluating the disposition, and that the persons entering the property have permission to be there, subject to any seller-imposed rules or restrictions provided to the Disposition Parties.

JV Partner is responsible for obtaining and maintaining the seller's permission for such access and for communicating all seller-imposed rules, restrictions, notice requirements, occupancy requirements, and access limitations to the Disposition Parties.

The Disposition Parties will make reasonable efforts to communicate the seller's known showing rules to prospective buyers and will use reasonable efforts to ensure that prospective buyers are vetted before a property walk-through, including obtaining proof of funds or other reasonable evidence of the buyer's ability to purchase. The Disposition Parties may not, however, guarantee the conduct of a prospective buyer while on the property.

JV Partner acknowledges that the Disposition Parties may not have a team member physically present at the property during every buyer walk-through. JV Partner accepts that property access may occur without a Disposition Parties' representative physically accompanying the buyer, provided that the buyer has been authorized for the showing through the Disposition process.

The Disposition Parties are not responsible for damage, destruction, theft, alterations, removal of items, unauthorized work, or other acts or omissions committed by a prospective buyer, investor, contractor, inspector, or other third party while accessing the property, except to the extent caused by the Disposition Parties' own intentional misconduct or conduct that cannot lawfully be excluded. JV Partner remains responsible for addressing any seller-side access authorization or dispute arising from the underlying purchase contract.

If JV Partner has actual knowledge of any condition that makes access unsafe, prohibited, restricted, or subject to special requirements, JV Partner must disclose that information to the Disposition Parties before any showing is scheduled.

**6. NO GUARANTEE OF A BUYER**

JV Partner acknowledges and agrees that the Disposition Parties do not guarantee, promise, or represent that a buyer will be located for any contract. The Parties will use commercially reasonable efforts to attempt to identify a vetted buyer, with a target of approximately fourteen (14) calendar days when reasonably practicable, but this is a target and not a guarantee.

JV Partner understands that the quality of the underlying contract, purchase price, assignment terms, property condition, access, title, seller cooperation, market demand, repair estimates, rental assumptions, comparable sales, buyer criteria, financing conditions, and other underwriting factors may materially affect whether a buyer can be located and what fee or offer can be obtained.

The Disposition Parties may determine that a contract is not reasonably marketable or does not meet their disposition standards and may discontinue disposition efforts at any time.

**7. OFFER REVIEW AND ACCEPTANCE**

Both Parties shall have a say in whether an offer is accepted. No offer shall be considered finally accepted for purposes of the JV unless both Parties agree to the proposed fee and transaction terms, subject to the authority of the contract holder.

The Parties shall attempt to reach agreement in good faith regarding the acceptable buyer, purchase price, assignment or disposition fee, closing date, earnest money, contingencies, and other material terms.

If the Parties cannot agree, the Party that holds the underlying purchase contract shall have the majority decision-making authority regarding whether to accept or reject an offer, provided that such decision remains subject to the terms of the underlying contract and applicable law.

**8. DISPOSITION FEE AND 50/50 JV SPLIT**

Unless otherwise agreed in a written transaction-specific agreement, the Parties' agreed joint venture split for a successful disposition shall be fifty percent (50%) to JV Partner and fifty percent (50%) to the Disposition Parties of the net disposition fee actually received at closing and available for distribution.

There is no guaranteed minimum disposition fee for either Party. The Parties understand that the actual fee may vary by transaction and may be zero if a transaction does not close or no acceptable buyer is found.

The fee and split for each transaction may be documented in a separate written fee or disposition agreement delivered to the title company or closing agent. The transaction-specific written fee agreement shall control if it expressly states a different split or fee for that transaction.

The Parties acknowledge that the Disposition Parties cannot accept private assignment fees or engage in brokerage activity outside the authority of their licensed brokerage relationship. Any compensation that constitutes brokerage compensation shall be handled through the appropriate Missouri-licensed brokerage and in accordance with applicable law and brokerage requirements. Where applicable, the Disposition Parties' brokerage fee shall be documented separately and payable to Vancil Brothers Realty, LLC, or such other properly designated brokerage entity as required by law or the brokerage relationship.

Except for compensation actually earned and payable under a written transaction-specific agreement and paid at closing, the Disposition Parties have no ownership interest, equity interest, beneficial interest, or financial right in the underlying purchase contract or property. The Disposition Parties do not receive or become entitled to a disposition fee merely because a property is marketed or a prospective buyer is located; the agreed compensation is earned only as provided in the applicable written fee agreement and upon the closing and disbursement of the transaction.

**9. NO HOLDING OF JV FUNDS**

Neither the Disposition Parties nor JV Partner shall be required to hold the other Party's JV proceeds in a personal bank account or in an escrow account maintained by either Party. When a transaction closes, the Parties intend for the title company or closing agent to disburse each Party's agreed share directly to the appropriate Party or payee identified in the applicable written closing instructions.

The Disposition Parties will not commingle JV proceeds with personal funds and will not establish or represent that they are acting as an escrow agent for the Parties.

**10. AUTHORITY TO MARKET AND EXIT RIGHTS**

JV Partner authorizes the Disposition Parties to market the contractual interest and communicate with prospective investors and buyers for disposition purposes during the term of the applicable JV relationship.

The Disposition Parties may stop marketing, decline to pursue a buyer, or exit the JV disposition relationship at any time and for any reason, including underwriting concerns, compliance concerns, market conditions, lack of buyer interest, title concerns, contractual concerns, insufficient economics, or inability to verify information.

Any cancellation, termination, release, or other action affecting the underlying purchase contract must be taken by the party legally authorized to take that action and in accordance with the underlying contract. Nothing in this Agreement gives the Disposition Parties authority to cancel JV Partner's purchase contract without JV Partner's

authorization.

**11. NO REPRESENTATION OF SELLER OR BUYER**

Unless expressly established by a separate written agreement, the Disposition Parties do not represent the seller, buyer, or any other party to the underlying real estate transaction. The Disposition Parties are participating solely in the Parties' disposition joint venture and related activities described in this Agreement.

Nothing in this Agreement creates a fiduciary duty, agency relationship, or representation of the seller or buyer.

**12. NO LEGAL, TAX, TITLE, OR INVESTMENT ADVICE**

The Parties acknowledge that the Disposition Parties are not attorneys and are not providing legal advice. The Disposition Parties recommend that each Party obtain independent legal, tax, title, insurance, accounting, and other professional advice as appropriate before entering into or modifying any real estate contract or transaction.

Each Party is responsible for determining whether a proposed transaction is appropriate for that Party and for obtaining any professional advice that Party considers necessary.

**13. TRANSACTION RISK AND INDEMNIFICATION**

JV Partner acknowledges that the Disposition Parties are not responsible for disputes, defaults, representations, omissions, misrepresentations, performance failures, or other transaction issues arising between JV Partner and the seller, JV Partner and an end buyer, the seller and an end buyer, or any other parties to the underlying transaction, except to the extent caused by the Disposition Parties' own intentional misconduct or conduct that cannot lawfully be excluded.

JV Partner shall be responsible for the accuracy and legality of the underlying purchase contract and for representations made by JV Partner to the seller or other transaction participants.

JV Partner acknowledges that the Disposition Parties' role is limited to seeking and coordinating an end buyer for an assignment or other disposition of the underlying contractual interest. The Disposition Parties are not responsible for the underlying contract or its terms, the seller or the seller's obligations, the buyer or the buyer's obligations, title defects, liens, payoff issues, closing delays, lender requirements, escrow issues, inspection issues, appraisal issues, financing issues, seller or buyer defaults, or disputes among any transaction participants, except to the extent caused by the Disposition Parties' own intentional misconduct or conduct that cannot lawfully be excluded.

Each Party agrees to be responsible for its own acts, omissions, representations, and legal compliance. Nothing in this section is intended to waive liability that cannot lawfully be waived.

**14. CONFIDENTIALITY**

Each Party shall maintain the confidentiality of non-public information received from the other Party in connection with the JV, including seller information, buyer information, contact information, contract terms, pricing, underwriting, offer history, marketing strategies, lead information, CRM information, and other proprietary business information.

Confidential information may be shared only with persons or entities reasonably necessary to evaluate, market, finance, close, or otherwise perform the applicable transaction, including title companies, attorneys, lenders, transaction coordinators, prospective buyers, and approved vendors, subject to applicable confidentiality obligations.

No Party may use confidential information obtained through the JV for an unrelated personal transaction or competing business purpose without the prior written consent of the Party that supplied the information.

**15. NON-CIRCUMVENTION**

During the JV relationship and for twenty-four (24) months thereafter, neither Party shall knowingly circumvent the other Party with respect to a seller, buyer, investor, referral source, or transaction opportunity first introduced or obtained through the other Party in connection with this Agreement for the purpose of avoiding the agreed JV compensation or diverting the opportunity away from the other Party.

This provision does not prohibit a Party from conducting business with a person or entity that it can demonstrate had a documented pre-existing business relationship with that Party before the introduction made through the JV.

**16. NON-SOLICITATION**

During the term of the JV relationship and for twenty-four (24) months after termination, neither Party shall knowingly solicit a transaction participant introduced through the JV for the purpose of circumventing the other Party's agreed economic interest in a transaction covered by this Agreement.

**17. PROPERTY AND DEAL INFORMATION**

Each Party retains ownership of its own pre-existing contacts, systems, databases, intellectual property, marketing materials, and business information. Transaction-specific information created or compiled for a JV opportunity may be used by both Parties solely for purposes of evaluating, marketing, negotiating, and closing that opportunity, subject to confidentiality and non-circumvention obligations.

**18. NO PROMISE OF MARKET VALUE OR INVESTMENT RETURN**

The Disposition Parties do not guarantee the accuracy of property values, repair estimates, rents, comparable sales, projected returns, buyer demand, financing availability, or any other investment metric supplied by JV Partner or third parties. Prospective buyers are responsible for performing their own due diligence and underwriting.

**19. MARKETING AUTHORIZATION**

JV Partner authorizes the Disposition Parties to market the contractual interest using information, photographs, videos, descriptions, comparable sales, financial projections, and other materials supplied or approved by JV Partner. JV Partner represents that it has the right to provide such materials for marketing purposes.

The Disposition Parties may choose the marketing channels, investor outreach methods, and market positioning strategies they believe are appropriate, subject to applicable law and any written transaction-specific restrictions.

JV Partner expressly authorizes the Disposition Parties to market the property and/or the contractual interest through email, text message, social media, investor databases, direct outreach, online marketing, and other reasonable methods necessary to seek a prospective buyer or assignee.

JV Partner represents that the underlying purchase contract and the seller's agreement permit the Disposition Parties to market the property and/or contractual interest in this manner. JV Partner is solely responsible for satisfying any notice, consent, disclosure, advertising, contractual, or other legal obligations between JV Partner and the seller relating to such marketing, except for obligations expressly assumed by the Disposition Parties in a separate written agreement.

The Disposition Parties may, from time to time, publish photographs, videos, property details, and/or the property address through social media or other marketing channels. If JV Partner does not want the property address,

photographs, videos, or other identifying property information publicly marketed, JV Partner must clearly state those restrictions in the written notes or submission information provided when the opportunity is submitted. Any such restriction should be specific and conspicuous.

**20. TERM AND TERMINATION**

This Agreement becomes effective on the date signed by the last Party and remains in effect until terminated by a Party in writing. Termination does not eliminate rights or obligations that accrued before termination, including agreed compensation for a transaction that was generated through the JV and subsequently closes, to the extent provided in a transaction-specific agreement.

Confidentiality and non-circumvention obligations shall survive termination for twenty-four (24) months, except that trade secrets shall remain protected for so long as they qualify as trade secrets under applicable law.

**21. TRANSACTION-SPECIFIC AGREEMENTS**

The Parties may use a separate JV fee agreement, disposition agreement, assignment agreement, closing instruction, or other written document for each property. If there is a conflict between this Agreement and a later transaction-specific written agreement, the transaction-specific agreement controls only with respect to that specific transaction and only to the extent of the conflict.

**22. NO GUARANTEE OF CLOSING**

Neither Party guarantees that any transaction will close. A transaction may fail because of title, financing, inspection, appraisal, seller or buyer default, contract expiration, inability to locate a buyer, statutory requirements, lender requirements, closing conditions, or other circumstances outside the control of the Disposition Parties.

**23. ELECTRONIC SIGNATURES**

Electronic signatures, digital signatures, scanned signatures, and counterparts shall be treated as originals to the extent permitted by applicable law. The Parties agree that electronic execution may be used for this Agreement and transaction-specific documents.

**24. GOVERNING LAW**

This Agreement shall be governed by the laws of the State of Missouri, without regard to conflict-of-law principles, except to the extent federal law or mandatory law of another jurisdiction applies.

**25. ENTIRE AGREEMENT; AMENDMENTS**

This Agreement contains the general understanding of the Parties regarding their JV disposition relationship and supersedes prior oral understandings concerning the same subject matter. Any amendment must be in writing and signed by the affected Parties. No provision of this Agreement is intended to waive or modify any non-waivable statutory requirement.

**26. SEVERABILITY**

If any provision of this Agreement is determined to be invalid or unenforceable, the remaining provisions shall remain in effect to the fullest extent permitted by law. The Parties intend that any invalid provision be modified only to the minimum extent necessary to make it enforceable, where legally permitted.

**27. ACKNOWLEDGMENT**

Each Party acknowledges that it has had the opportunity to review this Agreement, ask questions, obtain independent legal advice, and determine whether to enter into this Agreement voluntarily.

**SIGNATURES**

By signing below, the Parties acknowledge and agree to the terms of this Joint Venture Disposition Agreement.

**Megan Colyer Corp**

By: _____

Name: Megan Colyer

Title: _____

Date: _____

**JV Partner**

By: _____

Name: _____

Entity: _____

Date: _____

**Megan Colyer, Individually**

Signature: _____

Date: _____